

STATE OF WYOMING)
)
COUNTY OF LARAMIE) ss.

ACCESS LICENSE AGREEMENT

THIS ACCESS LICENSE AGREEMENT (hereinafter “this Agreement”) is hereby entered into by City of Cheyenne, **GRANTOR**, and Retail Properties C, LLC, **GRANTEE**. For \$10.00 and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, **GRANTOR** grants to **GRANTEE** an access license and the parties agree as follows:

1. The access license is for purposes of ingress and egress by **GRANTEE** with a width of Thirty (30) feet along the length of the south boundary of Lot 6 and with a width of thirty (30) feet along the length of the west boundary of Lot 6. A copy of a map and legal description for the access license is attached hereto as **Exhibit “A.”**

2. The legal description of the parcel to be benefitted by the license is as follows:

Lot 5, Block 10, of the Fire Station Addition, an Administrative
RePlat of All of Lot 4, Block 9, Grier-Leech Addition 4th Filing,
City of Cheyenne, Laramie County, Wyoming

3. The legal description of the parcel to be burdened by the license is as follows:

Lot 6, Block 10, of the Fire Station Addition, an Administrative
RePlat of All of Lot 4, Block 9, Grier-Leech Addition 4th Filing,
City of Cheyenne, Laramie County, Wyoming

4. The parties agree that the access license is subject to the following terms and conditions:

a. The land within the access license shall be paved by **GRANTOR**.

- b. At no time are the boundaries of the access license to be fenced without the express written agreement of **GRANTOR**.
 - c. There shall be no long-term parking of vehicles on the access license.
 - d. Maintenance and repair of the paved areas shall be at the sole expense of **GRANTOR**, and its successors and assigns, except in the event of negligence by the **GRANTEE**, or with regard to any maintenance and repair for use beyond normal wear and tear.
5. This access license shall be restricted to the use of **GRANTEE** only and its delivery trucks, customers, invitees, successors and assigns, for a term of 20 years. After 20 years, this license will be reviewed for extension if the recited use is still required and requested in writing by **GRANTEE** to **GRANTOR**, if not this license will expire.
6. This access license agreement and its terms and conditions shall run with the land and be binding upon and inure to the benefit of **GRANTOR** and **GRANTEE** and the successors and assigns of each.

DATED this ____ day of _____, 2022

GRANTOR:
CITY OF CHEYENNE:

GRANTEE:
RETAIL PROPERTIES C, LLC:

Patrick Collins, Mayor

Robert Wirth, Manager

STATE OF WYOMING)
) **ss.**
COUNTY OF LARAMIE)

The foregoing *Access License Agreement*, consisting of 3 pages and secured by a staple, was acknowledged, subscribed and sworn to before me by **Patrick Collins, Mayor of City of Cheyenne** who signed said instrument on behalf of the City of Cheyenne, appeared before and was personally known to the officer making the certificate, and was by him/her duly sworn and upon oath represented that he is the Mayor of the City of Cheyenne, that the instrument was signed on behalf of the City of Cheyenne, and that the officer who executed the instrument on behalf of the acknowledged the instrument to be the free act and deed of the City of Cheyenne this ____ day of _____, 20____.

Witness my hand and official seal.

Notary Public

My Commission Expires: _____

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing *Access License Agreement*, consisting of 3 pages and secured by a staple, was acknowledged, subscribed and sworn to before me by **Robert Wirth, Manager of Retail Properties C, LLC** (company) who signed said instrument on behalf of the company, appeared before and was personally known to the officer making the certificate, and was by him/her duly sworn and upon oath represented that he is the Manager of the company, that the instrument was signed on behalf of the company, and that the officer who executed the instrument on behalf of the acknowledged the instrument to be the free act and deed of the company this ____ day of _____, 20____.

Witness my hand and official seal.

Notary Public

My Commission Expires: _____

Exhibit A

